
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

1/9

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

Deliberation no. 9FR/2023 of July 24, 2023

The National Commission for Data Protection sitting in a restricted formation composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016

on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection, in particular its Article 41;

Having regard to the internal regulations of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular its Article 10 point 2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular its Article 9;

Considering the following:

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

2/9

I. Facts and Procedure

During its deliberation session on December 9, 2022, the National Commission for Data Protection sitting in plenary decided to open an investigation with the Municipal Administration of Dalheim, located at Gemengeplatz, L-5680

Dalheim (hereinafter: the "controlled entity"), based on Article 38 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection (hereinafter: the "law of August 1, 2018") and to appoint Mr. Alain Herrmann as the head of the investigation.

The said decision specified that the investigation conducted by the National Commission for Data Protection (hereinafter: the "CNPD" or the "National Commission") aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the "GDPR") and the law of August 1, 2018 and legal texts providing specific provisions regarding the protection of personal data and more specifically the application and compliance with Articles 37.1.a) and 37.7 of the GDPR.¹ The investigation specifically aimed to verify compliance with the obligation to appoint a data protection officer (hereinafter: "DPO") and to communicate the contact details to the supervisory authority. It followed a general audit that the CNPD had conducted with all Luxembourg municipalities during the summer of 2022.

The controlled entity was informed of the opening of the investigation against it by letter from the head of the investigation dated February 3, 2023. In this letter, the head of the investigation requested the controlled entity "to kindly take note of the initial findings below:

By letter dated August 11, 2022, the President of the CNPD reminded the Mayor of his obligation to appoint a data protection officer (hereinafter the "DPO"), as well as his obligation to notify the CNPD of this appointment (DOCUMENT 1).

1 Deliberation No. [...] of December 9, 2022, of the National Commission for Data Protection regarding the opening of an investigation mission with the Municipal Administration of Dalheim.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

3/9

In the absence of a response from the Mayor, the President of the CNPD sent him a reminder dated September 23, 2022 (DOCUMENT 2).

As of the date of drafting this letter, and after consulting the register of data protection delegates, the investigating officers did not identify any designation of a DPO for your municipality.

The controlled party responded to the opening letter of the investigation by email on February 9, 2023. At the end of his investigation, the head of the investigation notified the controlled party on April 11, 2023, of a communication of grievances detailing the breach he deemed constituted in this case regarding the requirements prescribed by Article 37.7 of the GDPR (obligation to communicate the contact details of the DPO to the supervisory authority).

The head of the investigation proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt a corrective measure.

The opportunity to submit written observations on the communication of grievances was offered to the controlled party. The latter did not provide any observations to the head of the investigation.

The President of the Restricted Formation informed the controlled party by letter dated May 23, 2023, that their case would be included in the session of the Restricted Formation on July 4, 2023, and that they were offered the possibility to be heard.

The controlled party informed the Restricted Formation by email on June 30, 2023, that they would not attend the said session.

During this session, the head of the investigation presented his oral observations in support of his written observations and answered questions posed by the Restricted Formation.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

4/9

II. In law

II.1. On the grounds for the decision

On the breach related to the obligation to communicate the contact details of the DPO to the CNPD

1. On the principles

In accordance with Article 37.1.a) of the GDPR, any data controller or processor must designate a DPO if the "processing is carried out by a public authority or body, except for courts acting in their judicial capacity."

Based on Article 37.7 of the GDPR, any data controller or processor is also obliged to communicate the contact details of the DPO to the supervisory authority, that is to say, in this case, to the CNPD.

In its guidelines concerning DPOs, the Article 29 Working Party specified the relevant provisions of the GDPR in this area to assist data controllers and processors in complying with the legislation, but also to assist DPOs in their role.

It should be noted that the European Data Protection Board, which succeeded the Article 29 Working Party on May 25, 2018, has adopted and reapproved the documents adopted by said Working Party between May 25, 2016, and May 25, 2018, including the aforementioned guidelines.

2. In this case

The head of the investigation noted in his communication of grievances that "at the date of the opening of the investigation, and after consulting the register of data protection delegates,

2 The guidelines concerning DPOs were adopted by the "Article 29" working group on December 13, 2016. The revised version (WP 243 rev. 01) was adopted on April 5, 2017.

3 See decision Endorsement 1/2018 of the EDPB of May 25, 2018, available at: https://edpb.europa.eu/sites/edpb/files/files/news/endorsement_of_wp29_documents_en_0.pdf.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

5/9

data, the investigating agents did not identify any designation of a DPO for the Municipal Administration of Dalheim."

Furthermore, it was noted that by letter dated February 9, 2023, "the controlled party informed the investigating agents of the existence of an external data protection delegate, following the municipal deliberation dated February 25, 2022 (DOCUMENT 5) and apologized for the delay

in notifying the said designation to the CNPD. The notification form was also attached to the communication (DOCUMENT 4)" and that "upon request from the investigating agents,

the controlled party also transmitted the acceptance of the two offers submitted by [...]. (DOCUMENT 6)."

Therefore, it was concluded that "the conditions of Article 37, paragraph (7) of the GDPR were not met at the date of the opening of the investigation."⁴

The Restricted Formation wishes to emphasize in this context that the controlled party is a Luxembourg municipal administration and, as such, a public entity required to have designated, at the latest by May 25, 2018, the date of application of the GDPR, a DPO.

It further notes that the controlled party responded on February 9, 2023, to the letter from the head of the investigation dated February 3, 2023, informing it of the opening of the investigation against it. Attached

to this email dated February 9, 2023, was an excerpt from the register of deliberations of the Municipal Council regarding the session of February 23, 2022, during which it was decided to appoint the company "[...]" as DPO, as well as the DPO declaration form to the CNPD, signed and dated February 9, 2023. A corrected DPO declaration form, signed and dated February 9, 2023, was received by the CNPD on the same day.

Furthermore, by email dated March 28, 2023, the investigating agents requested the controlled party to send to the CNPD a copy of the contract that had been signed with the company "[...]" and by email dated March 31, 2023, the controlled party sent them a copy of the offer "GDPR | DPO as a service" from the company "[...]" which had been signed "seen and approved" by the Municipal Council on February 23, 2022.

4 Communication of grievances, points 15 to 17.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

6/9

The Restricted Formation therefore finds that at the date of the opening of the investigation, namely December 9, 2022, the controlled party had designated a DPO, but had not communicated the contact details of this DPO to the CNPD.

In light of the above, it aligns with the head of the investigation and concludes that at the beginning of

the investigation, the controlled party failed to fulfill its obligation arising from Article 37.7 of the GDPR.

II. 2. On corrective measures

1. On the principles

In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

- “a) warn a data controller or a processor that the intended processing operations are likely to violate the provisions of this regulation;
- b) reprimand a data controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;
- c) order the data controller or processor to comply with requests made by the data subject in order to exercise their rights under this regulation;
- d) order the data controller or processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, specifically and within a determined timeframe;
- e) order the data controller to communicate to the data subject a personal data breach;
- f) impose a temporary or definitive limitation, including a prohibition, on the processing;
- g) order the rectification or erasure of personal data or the limitation of processing in accordance with Articles 16, 17, and 18 and the notification of these

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

7/9

measures to the recipients to whom the personal data have been disclosed pursuant to Article 17, paragraph 2, and Article 19;

- h) withdraw a certification or order the certifying body to withdraw a certification issued under Articles 42 and 43, or order the certifying body not to issue a certification if the applicable requirements for certification are not or are no longer met;
- i) impose an administrative fine pursuant to Article 83, in addition to or in place of the measures referred to in this paragraph, depending on the specific characteristics of each case;
- j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.

In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

The Restricted Formation wishes to clarify that the facts taken into account in the context of this decision are those established at the beginning of the investigation. Any subsequent changes regarding the data processing subject to the investigation, even if they fully or partially establish compliance, do not retroactively annul an established breach.

Nevertheless, the steps taken by the controlled entity to comply with the GDPR during the investigation procedure or to remedy the breaches identified by the head of the investigation in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be imposed.

2. In this case

In the communication of grievances, the head of the investigation "proposes to the Restricted Formation to issue a reprimand against the Controlled Entity stating that it must

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

8/9

comply with the applicable legislation regarding the appointment of a data protection officer."5

Regarding the corrective measure proposed by the head of the investigation and by reference to point 21 of this decision, the Restricted Formation takes into account the steps taken by the controlled entity to comply with the provisions of Article 37.7 of the GDPR, as detailed in its emails dated February 9 and March 31, 2023.

In particular, it notes that on February 9, 2023:

-
the controlled entity had sent to the head of the investigation an excerpt from the minutes of the Municipal Council relating to the meeting of February 23, 2022, during which it was decided to appoint the company “[...]” as DPO; and

-
the rectified, signed, and dated declaration form of the DPO on the same day had been received by the CNPD.

It also notes that on March 31, 2023, the controlled entity had sent to the CNPD a copy of the offer “GDPR | DPO as a service” from the company “[...]” which was signed “seen and approved” by the Municipal Council on February 23, 2022.

Nevertheless, at the time of the opening of the investigation, the controlled entity had not communicated the contact details of its DPO to the CNPD.

For these reasons, the Restricted Formation considers that it is appropriate to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 22 of this decision and to reprimand the controlled entity for having violated Article 37.7 of the GDPR.

Finally, pursuant to Article 52 of the law of August 1, 2018, the “CNPD may order, at the expense of the sanctioned person, the full or partial publication of its decisions, except for decisions relating to the imposition of penalties, and subject to the condition that:

1° the avenues for appeal against the decision have been exhausted; and

5 Communication of grievances, point 23.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Dalheim

9/9

2° the publication does not risk causing disproportionate harm to the parties involved.”

The Restricted Formation considers that the publication of this decision does not risk causing disproportionate harm to the controlled entity, but is justified in light of the public interest in knowing the results of the general audit that the CNPD conducted with all Luxembourg municipalities during the summer of 2022.

In light of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

- to uphold the breach of Article 37.7 of the GDPR;
- to issue a reprimand against the Municipal Administration of Dalheim for violating Article 37.7 of the GDPR;
- to publish the decision on the National Commission's website as soon as the avenues for appeal are exhausted.

Belvaux, July 24, 2023,

The National Commission for Data Protection sitting in a restricted formation,

Tine A. Larsen

Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of avenues for appeal

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer from one of the Bar Associations.